

Accessory Dwelling Unit (ADU)
2025 Fall Annual Town Meeting
Dated September 25, 2025
Revised October 30, 2025

Vote: Recommend favorable action by the Planning Board (5-0-0)
Vote Date: September 25, 2025

Motion

Move that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting all references to “Principal One-Family Dwelling” and replacing with “Principal Residential Dwelling” in all occurrences for the Definitions of Accessory Dwelling Unit (ADU), Gross Floor Area, to read as follows:

Accessory Dwelling Unit (ADU): per MGL c. 40A §1A, an Accessory Dwelling Unit (ADU) is a self-contained Residential Dwelling Unit, inclusive of sleeping, cooking, and sanitary facilities on the same lot as a Principal Residential Dwelling, subject to otherwise applicable dimensional and parking requirements, that: (i) maintains a separate entrance, either directly from the outside or through an entry hall or corridor shared with the Principal Residential Dwelling sufficient to meet the requirements of the state building code for safe egress; (ii) is not larger in floor area than half (1/2) the floor area of the Principal Residential Dwelling or nine-hundred (900) square feet, whichever is smaller; and (iii) is subject to such additional restrictions as may be imposed by a municipality, including, but not limited to, additional size restrictions and restrictions or prohibitions on Short-term Rental of ADU, as defined in section 1 of chapter 64G, as further defined herein; provided, however, that no municipality shall unreasonable restrict the creation or rental of an accessory dwelling unit that is not a Short-term Rental. (Art. 20, Fall ATM, 10/24/2024)

Gross Floor Area: The sum of the areas of all stories of a building measured from the exterior faces of the exterior walls or from the centerline of walls separating two buildings, including any floor area below grade when usable for residential, office, business, storage, industrial, or other purposes, but excluding any area used exclusively for heating, air conditioning or other mechanical equipment which services the building, and excluding floor area intended or designed for off-street parking. The Gross Floor Area of a Principal Residential Dwelling or an Accessory Dwelling Unit (ADU), shall be calculated per 760 CMR 71.00, as amended. ~ (Art.28, Spring ATM, 05/06/2025)

Move that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting the second sentence “A Family Suite was defined as an accessory dwelling unit, in a principal One-Family Dwelling, for occupancy by a resident who is related by blood, marriage, or adoption to the owner of the principal Residential Dwelling.” and replacing with a new sentence “A Family Suite was defined as an accessory dwelling unit, in a Principal One-Family Dwelling for occupancy by a resident who is related by blood, marriage, or adoption to the owner of the Principal Residential Dwelling.”, to read as follows:

Family Suite – See Accessory Dwelling Unit (ADU). Prior to February 3, 2025, Family Suites were permitting in the Single Residential (RS) Zoning Districts (RSA, RSB, and RSC) by special permit from the Zoning Board of Appeals (ZBA). A Family Suite was defined as an accessory dwelling unit, in a Principal Residential Dwelling for occupancy by a resident who is related by blood, marriage, or adoption to the owner of the Principal Residential Dwelling. (Art. 20, Fall ATM, 10/24/2024)

And further move that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting the definition “Dwelling, Principal One-Family” and replacing with a new definition “Dwelling, Principal Residential”, to read as follows:

Dwelling, Principal Residential: For the purposes of § III-M Accessory Dwelling Units (ADU), the Principal Residential Dwelling will be the primary use, while the ADU will be the accessory use on the Lot. The ADU may be attached or detached to the Principle Residential Dwelling. (Art. 20, Fall ATM, 10/24/2024)

And further move that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting the definition “Principal One-Family Dwelling” and replacing with a new definition “Principal Residential Dwelling”, to read as follows:

Principal Residential Dwelling: See Dwelling, Principal Residential (Art. 20, Fall ATM, 10/24/2024)

And further move that the Town vote to amend § III-M Accessory Dwelling Unit, by amending §III-M.1, III-M.2.d, III-M.3.a, III-M.3.b, III-M.3.e, III-M.4.a.i, III-M.4.a.ii, III-M.4.a.iii, III-M.4.b.i, III-M.4.c.i, III-M.4.d.i, III-M.5.c, III-M.5.e, and III-M.5.g by deleting “Principal One-Family Dwelling” and replacing with “Principal Residential Dwelling” in all occurrences; amending §III-M.3. by deleting §III-M.3.c in its entirety and renumbering the remainder of the subsection (“d.” will be the new “c.”, “e” will be the new “d.”, and “f.” will be the new “e.”); deleting § III-M.5.d in its entirety, and renumbering the remainder of the subsection (“e.” will be the new “d.”, “f.” will be the new “e.”, “g.” will be the new “f.”, and “h.” will be the new “g.”); amending Section III-M.5.e by deleting the words “a minimum of” that occur after “An ADU shall provide” and before the words “one (1) off-street parking space on the Lot when located a half (1/2) mile or more from a commuter rail station.”, to read as follows:

Section III-M. Accessory Dwelling Unit

1. Purpose and Intent

An Accessory Dwelling Unit (ADU) is an alternative type of housing that allows Natick to expand and diversify its housing supply options without requiring additional land development. The design and implementation of an ADU is expected to fit on a Lot, with the Principal Residential Dwelling.

2. Massachusetts General Law (MGL)

- a. ADUs are permitted As of Right per Massachusetts General Laws (MGL), Chapter (c) 40A, § 3.
- b. The Town has established §III-M of these Zoning Bylaws to provide guidance and to reasonably regulate the construction of ADUs within single-family zoning districts.
- c. No ADU unit may be utilized as Short-term Rental.
- d. The gross floor area of the Principal Residential Dwelling or the ADU outlined in § III-M of these Zoning Bylaws shall be calculated per 760 CMR 71.00, as amended. (Art. 20, Spring ATM, 05.06.2025)

3. Applicability and Requirements

- a. In order to qualify for an As of Right ADU, the Principal Residential Dwelling and the Lot shall:
 - i. conform to the maximum Building Coverage of the respective Zoning District, per § IV-B Intensity Use Regulations of these Zoning Bylaws; and

- ii. be the only residential Dwelling Unit on the Lot prior to construction of the ADU.
 - b. Neither the Principal Residential Dwelling nor the ADU shall be used as a Short-term Rental.
 - c. Where there are two (2) or more ADUs on a Lot. One (1) of the ADUs shall be deed restricted as affordable per and subject to § V-J Inclusionary Housing of these Zoning Bylaws.
 - d. The ADU and the Principal Residential Dwelling shall remain on the same Lot and shall not be divided onto two (2) separate lots.
 - e. No ADU unit may be separately sold as a condominium, or otherwise.
4. Permitting Regulations and Permit Review Authority
- a. Building Permit Review – Building Permit Application

The Building Commissioner shall be the permit granting authority for the creation of the following types of ADUs. Such review shall be conducted concurrently as part of a Building Permit application.

 - i. A single ADU that is located entirely within the Principal Residential Dwelling or within an existing attached garage, with no exterior increases in square footage;
 - ii. A single ADU located in an existing detached garage that is greater than ten (10) feet from the Principal Residential Dwelling. Detached garages less than ten (10) feet from the Principal Residential Dwelling shall meet all Building Code requirements;
 - iii. A single ADU to be located within a Principal Residential Dwelling at the time of construction of the Principal Residential Dwelling; or
 - iv. The conversion of a Family Suite to an ADU, unless such conversion requires relief from the Zoning Board of Appeals (ZBA), and then either section c. or d. shall apply, depending on the facts and circumstances. Consultation with Town staff is encouraged before any conversion application is filed.
 - b. ADU Site Review (As of Right)

The Building Commissioner shall be the permit granting authority for the creation of the following types of ADUs. ADU Site Review shall be As of Right and limited to the bulk, height, scale, and placement of a single ADU on the Lot.

 - i. A single detached ADU on a Lot located within the Allowable Building Envelope and greater than ten (10) feet from the Principal Residential Dwelling;
 - ii. The construction of a single ADU on a Lot that is deficient only in Lot Area and Frontage; or
 - iii. The construction of an addition for a single ADU that does not require relief from the ZBA.
 - c. ADU – Pre-existing Non-conforming Lots (As of Right)

The ZBA shall be the permit granting authority for ADU Site Review, which is an As of Right (majority-vote) review. The review of the following ADUs shall be limited to the bulk, height, scale, and placement of a single ADU on the Lot.

 - i. The expansion of an existing Principal Residential Dwelling or existing building (that is greater than ten (10) feet in distance from the Principal Residential Dwelling) that is deficient in Intensity Regulations per §IV-B of these Zoning Bylaws; or
 - ii. The placement or addition of an ADU requires a Section 6 Finding beyond relief associated with Lot Area and Lot Frontage.
 - d. ADU Special Permit

The ZBA shall be the Special Permit Granting Authority (SPGA) for the following Special Permits, which shall require a super-majority vote:

 - i. The creation of two (2) or more ADU per Principal Residential Dwelling or Lot, which will require a super-majority vote.

- ii. A Building proposed to exceed the allowable Lot Coverage or other dimensional requirements per § IV-B Intensity Regulations by Zoning District, with the exception of Lot Area and Lot Frontage. The Special Permit shall be required for the Building, not the ADU as a use.
- 5. Design Requirements and Findings

The permit granting authority or SPGA shall review an ADU application for compliance with the following Findings.

 - a. The ADU shall be located in the Allowable Building Envelope of a Lot.
 - b. The Lot shall remain conforming to Building Coverage per §IV-B of these Zoning Bylaws for the respective Zoning District after the construction of an ADU.
 - c. An ADU detached from the Principal Residential Dwelling shall be a minimum of ten (10) feet from another Structure on the Lot, per the State Building Code.
 - d. A detached ADU shall not be located between a roadway and the designated frontage of the Principal Residential Dwelling.
 - e. An ADU shall provide one (1) off-street parking space on the Lot when located a half (1/2) mile or more from a commuter rail station.
 - f. When an ADU has a separate exterior entrance from the Principal Residential Dwelling or is a separate Building, the ADU shall be accessible from a path or walkway.
 - g. The ADU is located on the Lot so it does not impede vehicular access and circulation of the Lot, roadways, and sidewalks.
- 6. Review Procedures

The ZBA shall evaluate each application based on the following respective Review Criteria.

 - a. ADU Site Review Procedures

For uses outlined in § III-M.4.c of this Bylaw, the following public review procedures shall be followed.

 - i. The ADU Site Review shall be posted on a public meeting agenda.
 - ii. Notice of the public meeting shall be sent to abutters within three hundred (300) feet of the boundaries of the Lot.
 - iii. A decision shall be rendered within thirty-five (35) days of the first public meeting.
 - b. ADU Special Permit Procedures

For uses outlined in § III-M.4.d of this Bylaw, the review of such application shall comply with § VI-DD.1.e of these Zoning Bylaws.